LOKPAL AND LOKAYUKTAS

OMBUDSMAN EVOLUTION AND STATUTORY → COMPOSITION AND ELIGIBILITY → SELECTION, TENURE AND REMOVAL → JURISDICTION OVER PERSONS AND → PRIME MINISTER AND PARLIAMENTARY → COMPLAINT AND PRELIMINARY INQUIRY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

00 OMBUDSMAN EVOLUTION AND STATUTORY IDENTITY

OMBUDSMAN EVOLUTION AND STATUTORY IDENTITY · ROOT QUESTION · HOW CAN HIGH PUBLIC OFFICE BE INVESTIGATED WITHOUT MERGING · 1809 SWEDEN · OMBUDSMAN MODEL · 1966 FIRST ARC · UNION LOKPAL + STATE LOKAYUKTAS · 1968 ONWARD

ROOT QUESTION → How can high public office be investigated without merging complaint, police and court? → 1809 Sweden → ombudsman model. → 1966 First ARC → Union Lokpal + State Lokayuktas. → 1968 onward → repeated Bills.

CONSTITUTIONAL BASIS / ARTICLE
- ROOT QUESTION
- How can high public office be investigated without merging complaint, police and court?
- 1809 Sweden → ombudsman model.

POWER / PROCEDURE
- 1966 First ARC → Union Lokpal + State Lokayuktas.
- 1968 onward → repeated Bills.
- 2013 Act → assent 1 January 2014 → commencement 16 January 2014.

CHECK / LIMIT
- LEGAL IDENTITY statutory
- Union institution
- no general suo-motu route.

FEDERAL / RIGHTS IMPACT
- CORE DISTINCTION
- Lokpal directs a legal process; the Special Court decides criminal guilt.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Lokpal directs a legal process; the Special Court decides criminal guilt.

01 COMPOSITION AND ELIGIBILITY

COMPOSITION AND ELIGIBILITY · CHAIRPERSON + NOT MORE THAN EIGHT MEMBERS. · 50% JUDICIAL · AT LEAST 50% FROM NAMED SOCIAL CATEGORIES. · ELIGIBILITY JUDICIAL AND EMINENT-PERSON ROUTES HAVE DISTINCT STATUTORY CONDITIONS. · TRAP REPRESENTATION APPLIES TO MEMBERS; IT IS NOT AN

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
Chairperson + not more than eight Members.	at least 50% from named social categories.	TRAP representation applies to Members; it is not an extra seat count.	50% judicial
50% judicial	ELIGIBILITY judicial and eminent-person routes have distinct statutory conditions.	Chairperson + not more than eight Members.	at least 50% from named social categories.

CONSTITUTIONAL BASIS / ARTICLE
- Chairperson + not more than eight Members.
- 50% judicial

POWER / PROCEDURE
- at least 50% from named social categories.
- ELIGIBILITY judicial and eminent-person routes have distinct statutory conditions.

CHECK / LIMIT
- TRAP representation applies to Members; it is not an extra seat count.
- Chairperson + not more than eight Members.

FEDERAL / RIGHTS IMPACT
- 50% judicial
- at least 50% from named social categories.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP representation applies to Members; it is not an extra seat count.

02 SELECTION, TENURE AND REMOVAL

SELECTION, TENURE AND REMOVAL · EMINENT JURIST. · SEARCH COMMITTEE ASSISTS; PRESIDENT APPOINTS ON RECOMMENDATION. · TENURE FIVE YEARS OR AGE SEVENTY · NO REAPPOINTMENT. · REMOVAL MISBEHAVIOUR · SUPREME COURT INQUIRY. · SPECIFIED DIRECT-REMOVAL GROUNDS REMAIN SEPARATE.

eminent jurist. → Search Committee assists; President appoints on recommendation. → TENURE five years or age seventy → no reappointment. → REMOVAL misbehaviour: President → Supreme Court inquiry.

CONSTITUTIONAL BASIS / ARTICLE
- eminent jurist.
- Search Committee assists; President appoints on recommendation.

POWER / PROCEDURE
- TENURE five years or age seventy
- no reappointment.

CHECK / LIMIT
- REMOVAL misbehaviour: President → Supreme Court inquiry.
- Specified direct-removal grounds remain separate.

FEDERAL / RIGHTS IMPACT
- Common Cause v. Union of India (2017): vacancy did not make the Act unworkable.
- eminent jurist.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Common Cause v. Union of India (2017): vacancy did not make the Act unworkable.

03 JURISDICTION OVER PERSONS AND ENTITIES

JURISDICTION OVER PERSONS AND ENTITIES · GROUPS A-D · FORMER COVERED FUNCTIONARIES. · ENTITIES GOVERNMENT-LINKED BODIES AND SPECIFIED DONATION/FOREIGN-CONTRIBUTION RECIPIENTS, SUBJECT TO · TRAP COVERAGE IS CONDITIONAL; LOKPAL HAS NO GENERAL PRIVATE-SECTOR

CONSTITUTIONAL BASIS / ARTICLE
- Groups A-D
- former covered functionaries.

POWER / PROCEDURE
- ENTITIES government-linked bodies and specified donation/foreign-contribution recipients, subject to statutory thresholds.
- TRAP coverage is conditional; Lokpal has no general private-sector jurisdiction.

CHECK / LIMIT
- Groups A-D
- former covered functionaries.

FEDERAL / RIGHTS IMPACT
- ENTITIES government-linked bodies and specified donation/foreign-contribution recipients, subject to statutory thresholds.
- TRAP coverage is conditional; Lokpal has no general private-sector jurisdiction.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP coverage is conditional; Lokpal has no general private-sector jurisdiction.

04 PRIME MINISTER AND PARLIAMENTARY PRIVILEGE

PRIME MINISTER AND PARLIAMENTARY PRIVILEGE · PM FILTER EXCLUDED DOMAINS · INTERNATIONAL RELATIONS · PUBLIC ORDER · ATOMIC ENERGY · FULL BENCH + TWO-THIRDS APPROVAL · IN CAMERA · RECORD CONTROLS.

CONSTITUTIONAL BASIS / ARTICLE
- PM FILTER excluded domains: international relations
- public order

POWER / PROCEDURE
- atomic energy
- Full bench + two-thirds approval

CHECK / LIMIT
- in camera
- record controls.

FEDERAL / RIGHTS IMPACT
- MP RULE section 14(2) preserves genuine speech/vote functions.
- Sita Soren (2024): bribery is not immunised merely because linked to a vote.

MECHANISM / VERDICT — Sita Soren (2024): bribery is not immunised merely because linked to a vote.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MP RULE section 14(2) preserves genuine speech/vote functions.

05 COMPLAINT AND PRELIMINARY INQUIRY

COMPLAINT AND PRELIMINARY INQUIRY · PRESCRIBED COMPLAINT IDENTITY + AFFIDAVIT + PARTICULARS + SUPPORTING · LOKPAL CHOICE PRELIMINARY INQUIRY · LAWFUL CLOSURE. · INQUIRY PRIMA FACIE SCREEN · PUBLIC-SERVANT HEARING · REASONED REPORT. · INQUIRY IS NOT INVESTIGATION AND ALLEGATION IS NOT GUILT.

PRESCRIBED COMPLAINT identity + affidavit + particulars + supporting material → scrutiny. → LOKPAL CHOICE preliminary inquiry → lawful closure. → INQUIRY prima facie screen → public-servant hearing → reasoned report. → Inquiry is not investigation and allegation is not guilt.

CONSTITUTIONAL BASIS / ARTICLE
- PRESCRIBED COMPLAINT identity + affidavit + particulars + supporting material → scrutiny
- LOKPAL CHOICE preliminary inquiry

POWER / PROCEDURE
- lawful closure.
- INQUIRY prima facie screen → public-servant hearing → reasoned report.

CHECK / LIMIT
- Inquiry is not investigation and allegation is not guilt.
- PRESCRIBED COMPLAINT identity + affidavit + particulars + supporting material → scrutiny.

FEDERAL / RIGHTS IMPACT
- LOKPAL CHOICE preliminary inquiry
- lawful closure.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Inquiry is not investigation and allegation is not guilt.

06 INVESTIGATION, PROSECUTION AND SPECIAL COURT

INVESTIGATION, PROSECUTION AND SPECIAL COURT · CBI/OTHER AGENCY GATHERS EVIDENCE WITHIN STATUTORY TIMELINES. · LOKPAL BENCH CLOSURE · DEPARTMENTAL ACTION · SANCTION/PROSECUTION ROUTE. · PROSECUTION WING FILES AND CONDUCTS PROSECUTION WHEN DIRECTED. · SPECIAL COURT ADJUDICATES GUILT; TARGET ONE YEAR WITH RECORDED

CBI/other agency gathers evidence within statutory timelines.

LOKPAL BENCH closure → departmental action → sanction/prosecution route.

CONSTITUTIONAL BASIS / ARTICLE
- CBI/other agency gathers evidence within statutory timelines.
- LOKPAL BENCH closure

POWER / PROCEDURE
- departmental action
- sanction/prosecution route.

CHECK / LIMIT
- PROSECUTION WING files and conducts prosecution when directed.
- SPECIAL COURT adjudicates guilt; target one year with recorded extensions, total two years.

FEDERAL / RIGHTS IMPACT
- CBI/other agency gathers evidence within statutory timelines.
- LOKPAL BENCH closure

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SPECIAL COURT adjudicates guilt; target one year with recorded extensions, total two years.

07 INQUIRY WING, CVC AND CBI INTERFACES

INQUIRY WING, CVC AND CBI INTERFACES · INQUIRY WING PRELIMINARY INQUIRY AND PRIMA FACIE ASSESSMENT · PROSECUTION WING FILES AND CONDUCTS PROSECUTION WHEN LOKPAL DIRECTS. · CVC ROUTE SPECIFIED GROUPS A-D PRELIMINARY-INQUIRY CATEGORIES UNDER THE · DSPE ROUTE CRIMINAL INVESTIGATION; LOKPAL SUPERINTENDENCE IS CONFINED TO · INVESTIGATING-OFFICER TRANSFER IN A REFERRED MATTER NEEDS LOKPAL APPROVAL. · GRIEVANCE DISTINCT ENTRY TESTS AND OUTPUTS; NO AUTOMATIC JURISDICTIONAL · LIMIT SUPERINTENDENCE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
INQUIRY WING preliminary inquiry and prima facie assessment.	CVC ROUTE specified Groups A-D preliminary-inquiry categories under the statutory distribution.	Investigating-officer transfer in a referred matter needs Lokpal approval.	LIMIT superintendence != power to dictate a predetermined investigative result.
PROSECUTION WING files and conducts prosecution when Lokpal directs.	CBI / DSPE ROUTE criminal investigation; Lokpal superintendence is confined to Lokpal-referred matters.	VIGILANCE / WHISTLEBLOWER / GRIEVANCE distinct entry tests and outputs; no automatic jurisdictional substitution.	INQUIRY WING preliminary inquiry and prima facie assessment.

CONSTITUTIONAL BASIS / ARTICLE
- INQUIRY WING preliminary inquiry and prima facie assessment.
- PROSECUTION WING files and conducts prosecution when Lokpal directs.

POWER / PROCEDURE
- CVC ROUTE specified Groups A-D preliminary-inquiry categories under the statutory distribution.
- CBI / DSPE ROUTE criminal investigation; Lokpal superintendence is confined to Lokpal-referred matters.

CHECK / LIMIT
- Investigating-officer transfer in a referred matter needs Lokpal approval.
- VIGILANCE / WHISTLEBLOWER / GRIEVANCE distinct entry tests and outputs; no automatic jurisdictional substitution.

FEDERAL / RIGHTS IMPACT
- LIMIT superintendence != power to dictate a predetermined investigative result.
- INQUIRY WING preliminary inquiry and prima facie assessment.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT superintendence != power to dictate a predetermined investigative result.

08 POWERS, ASSETS AND LIMITATION

POWERS, ASSETS AND LIMITATION · PROCESS POWERS SEARCH/SEIZURE · CIVIL-COURT POWERS · PROVISIONAL ATTACHMENT · PROSECUTION SANCTION. · ATTACHMENT RECORDED REASONS + SUSPECTED CORRUPTION PROCEEDS + MAXIMUM · MATERIAL SENT TO SPECIAL COURT · CONFIRMATION, REFUSAL OR LATER RESTORATION.

CONSTITUTIONAL BASIS / ARTICLE
- PROCESS POWERS search/seizure
- civil-court powers
- provisional attachment

POWER / PROCEDURE
- prosecution sanction.
- ATTACHMENT recorded reasons + suspected corruption proceeds + maximum ninety-day provisional order
- material sent to Special Court → confirmation, refusal or later restoration.

CHECK / LIMIT
- SECTION 44
- 2016 substitution → assets/liabilities in prescribed form and manner.
- Checked official material did not yield a later fresh replacement form-and-manner rule.

FEDERAL / RIGHTS IMPACT
- LIMITATION complaint barred after seven years from the alleged offence.
- FALSE COMPLAINT statutory safeguard requires legal proof it must not deter bona fide disclosures.
- Lok Prahari v. Union of India (2018) electoral disclosure case: it did not restore the pre-2016 Lokpal return format.

MECHANISM / VERDICT — LIMITATION complaint barred after seven years from the alleged offence.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Checked official material did not yield a later fresh replacement form-and-manner rule.

09 LOKAYUKTAS AND FEDERAL DIVERSITY

LOKAYUKTAS AND FEDERAL DIVERSITY · SECTION 63 EACH STATE SHALL ESTABLISH A LOKAYUKTA BY · VARIATION AXES SINGLE/MEMBER BODY · SELECTION PANEL · SUO-MOTU POWER MINISTER COVERAGE · INVESTIGATION SUPPORT · RECOMMENDATION/ENFORCEMENT ROUTE. · DO NOT UNIVERSALISE ONE STATE'S GOVERNOR PANEL, AGE, TERM

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
SECTION 63 each State shall establish a Lokayukta by State law.	suo-motu power minister coverage	DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence.	FEDERAL RISK uneven minimum protection, vacancies and dependence on State agencies.
VARIATION AXES single/member body	investigation support	FEDERAL GAIN	REFORM model baseline + State autonomy + transparent appointments + public follow-up.
selection panel	recommendation/enforcement route.	State adaptation and experimentation.	

CONSTITUTIONAL BASIS / ARTICLE
- SECTION 63 each State shall establish a Lokayukta by State law.
- VARIATION AXES single/member body
- selection panel

POWER / PROCEDURE
- suo-motu power minister coverage
- investigation support
- recommendation/enforcement route.

CHECK / LIMIT
- DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence.
- FEDERAL GAIN
- State adaptation and experimentation.

FEDERAL / RIGHTS IMPACT
- FEDERAL RISK uneven minimum protection, vacancies and dependence on State agencies.
- REFORM model baseline + State autonomy + transparent appointments + public follow-up.

MECHANISM / VERDICT — DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: REFORM model baseline + State autonomy + transparent appointments + public follow-up.

10 CASES AND CURRENT LEGAL CONTROLS

CASES AND CURRENT LEGAL CONTROLS · COMMON CAUSE V. UNION OF INDIA (2017) · ACT WORKABLE DESPITE COMMITTEE VACANCY. · LOK PRAHARI V. UNION OF INDIA (2018) · ELECTORAL DISCLOSURE, NOT SECTION 44 RESTORATION. · SITA SOREN (2024) · BRIBERY OUTSIDE PRIVILEGE IMMUNITY. · 2025 HIGH COURT-JUDGE ISSUE

Common Cause v. Union of India (2017) → Act workable despite committee vacancy. → Lok Prahari v. Union of India (2018) → electoral disclosure, not section 44 restoration. → Sita Soren (2024) → bribery outside privilege immunity. → 2025 HIGH COURT-JUDGE ISSUE → Supreme Court stayed the Lokpal order; no final merits holding.

CONSTITUTIONAL BASIS / ARTICLE
- Common Cause v. Union of India (2017) → Act workable despite committee vacancy.
- Lok Prahari v. Union of India (2018) → electoral disclosure, not section 44 restoration.

POWER / PROCEDURE
- Sita Soren (2024) → bribery outside privilege immunity.
- 2025 HIGH COURT-JUDGE ISSUE

CHECK / LIMIT
- Supreme Court stayed the Lokpal order; no final merits holding.
- CURRENT CLAIMS use dated primary sources; do not freeze transient statistics.

FEDERAL / RIGHTS IMPACT
- Common Cause v. Union of India (2017) → Act workable despite committee vacancy.
- Lok Prahari v. Union of India (2018) → electoral disclosure, not section 44 restoration.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CURRENT CLAIMS use dated primary sources; do not freeze transient statistics.

11 UPSC TRAPS AND ANSWER SYNTHESIS

UPSC TRAPS AND ANSWER SYNTHESIS · PRELIMS FIREWALL STATUTORY, NOT CONSTITUTIONAL · MAXIMUM EIGHT MEMBERS · PM INCLUDED WITH FILTERS SPEECH/VOTE EXCLUSION · NO GENERAL SUO-MOTU POWER · SEVEN-YEAR LIMITATION REFERRED-CASE CBI SUPERINTENDENCE ONLY · LOKAYUKTA DESIGN VARIES. · 2025 PRELIMS ROUTE JURISDICTION + COMPOSITION

PRELIMS FIREWALL statutory, not constitutional → maximum eight Members → PM included with filters speech/vote exclusion → no general suo-motu power → seven-year limitation referred-case CBI superintendence only

CONSTITUTIONAL BASIS / ARTICLE
- PRELIMS FIREWALL statutory, not constitutional
- maximum eight Members
- PM included with filters speech/vote exclusion

POWER / PROCEDURE
- no general suo-motu power
- seven-year limitation referred-case CBI superintendence only
- Lokayukta design varies.

CHECK / LIMIT
- 2025 PRELIMS ROUTE jurisdiction + composition → test percentage denominator, PM safeguards and privilege.
- MAINS SPINE ombudsman evolution → legal identity → composition/independence
- jurisdiction → complaint-to-court process → agency interfaces

FEDERAL / RIGHTS IMPACT
- powers and safeguards → State variation → capacity reform.
- Lokpal has real process powers, but credibility depends on appointments, agency
- autonomy, reasoned transparency and court-controlled legality rather than institutional mythology.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PRELIMS FIREWALL statutory, not constitutional | maximum eight Members | PM included with filters speech/vote exclusion | no general suo-motu power | seven-year limitation referred-case CBI superintendence only | Lokayukta design varies.

E SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

EXTRA · OPTIONAL ADVANCED ENRICHMENT · DRAWBACKS (UPSC FAVOURITE) · UPSC TRAPS · CA HOOKS (OFFICIAL/COURT-VERIFIED) · MAINS ANGLES · OMBUDSMAN FIRST CREATED IN SWEDEN (1809) ; INDIA'S VERSION · ARC KEPT THE JUDICIARY OUTSIDE LOKPAL'S PURVIEW (LIKE NEW · TEN BILLS INTRODUCED (1968

OPTIONAL DOCTRINE / CASE
- Composition
- Selection
- Jurisdiction
- Drawbacks (UPSC favourite)

ADVANCED LIMIT
- UPSC Traps
- CA hooks (official/court-verified)
- Mains angles
- Ombudsman first created in Sweden (1809) ; India's version recommended by the First ARC (1966–70) →

COMPARATIVE NUANCE
- ARC kept the judiciary outside Lokpal's purview (like New Zealand; unlike Sweden).
- Ten bills introduced (1968 → Dec 2011) before the law finally passed → Lokpal and Lokayuktas Act, 2013
- Power of superintendence & direction over any agency incl. the CBI for referred cases.
- Timelines: preliminary enquiry 3 (+3) months; investigation 6 (+6); trial 1 (+1) yr via special courts .

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels